

The high court's reservations about the decision to grant extension to superannuated police officers has the state Government in a bind

■ By Aditi Pai

At a time when most organisations, especially those in the private sector, have acknowledged the power of the youth, there are establishments still stuck in a time warp, and one of them is the Mumbai Police. It was in November 2007 that both—director general of police P.S. Pasricha and commissioner of Mumbai Police Dhananjay Jadhav—were slated to retire. But the Maharashtra Government extended their terms by three months. Chief Minister Vilasrao Deshmukh, at that time, had said that Pasricha “is an effective bridge between the minority community and the Government” and that his presence was required to monitor the tercentenary celebrations of Guru-Ta-Gaddi in Nanded. After a brief nine-month

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EXTENDED TROUBLES

tenure, Jadhav too was granted an extension as he “had been collecting intelligence regarding likely terror attacks”.

Questions had been raised when the two were granted extensions. Says IPS officer-turned-lawyer, Y.P. Singh, “The extension indicates that either the people have outstanding calibre or there is no suitable successor.” However, thanks to vigilant citizens like Gaurang Damani and R.R. Tripathi, who had filed public interest litigations against the extension, the state will now have to scout for fresh faces for the two jobs. The petitioners had sought an explanation for the extension stating that under the All India Services (death-cum-retirement benefit) Rules, 1958, only an officer engaged in budget work, or who is a member of any committee to be wound up shortly, can get an extension. On

February 15, the Bombay High Court quashed the extensions with Chief Justice Swatanter Kumar stating that they were “not reasoned, rational and not in the larger public interest”.

The judgement comes as a shot in the arm for the police force. The extensions had ruffled feathers of those who were waiting in the wings to succeed

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the two. Senior officers of the police believe that Jadhav's appointment itself wasn't a good decision. It had come at a time when the city was reeling under the aftershocks of the terror attacks on local trains in 2006. The need of the hour was a commissioner who could keep a firm grip on the city's law and order. “It is undesirable to appoint people who have just a few months of service left,”

says former Mumbai commissioner M.N. Singh. It is believed that Jadhav had been rewarded for his loyalty to the state's political hotshots.

It's a known fact that the post of Mumbai police commissioner is coveted and is allegedly auctioned to the highest bidder. However, a year before Assembly elections, there are no takers for this post as the incumbent may not find favour with the next

